

VERSION NO. 1	MANUAL TITLE FINANCE AND ADMINISTRATION MANUAL	DOCUMENT NO. FAM 4.01
	DOCUMENT NAME HANDLING OF CONCESSIONAIRES	REVISION NO. 1
		EFFECTIVITY DATE April 26, 2023
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1.0 OBJECTIVES

- 1.1 To provide guidelines and policies in handling concessionaires for business at the LNU-IGO Trade Park.
- 1.2 To ensure and sustain the existing income generating projects of the university while providing affordable goods and services to the university's customers and stakeholders.

2.0 SCOPE

This procedure covers and applies the entire agreement between LNU-IGO and STALL HOLDER as stipulated below.

3.0 POLICIES

- 3.1 The LNU-IGO will open for bidding on all VACANT stalls;
- 3.2 Only one (1) bid quotation submission is allowed per interested bidder during the bidding for stalls in the IGO Trade Park. **Note:** Husband and wife are considered as single bidding entity;
- 3.3 The qualified winning bidder of the stalls in the IGO Trade Park bidding will be called STALL HOLDERS;
- 3.4 The LNU-IGO will allow or permit the Stall Holder the use of a stall in the IGP Trade Park;
- 3.5 The Stall Holder shall provide affordable goods and services to interested clientele in the University;
- 3.6 The Stall Holder shall be allowed the use of the space only during the contract period;
- 3.7 The Stall Holder shall pay monthly rental through the University Cashier on or before the last day of every month, with or without operation;
- 3.8 The Stall Holder shall pay its own power consumption and a fixed rate of P200.00 for the water consumption, or until individual water sub-meter is installed. Payment shall be made within three (3) working days after the receipt of bill;
- 3.9 That the STALL HOLDER shall promptly and regularly pay the agreed rentals as well as billing for utilities like water and electric, on the above scheduled deadline. If the Stall Holder failed to pay at the set due date, the LNU-IGO will issue 3 subsequent notices with one (1) week interval as reminder of the unpaid rentals. Failure to settle the outstanding balance within seven (7) days after the 3rd notice, the LNU-IGO may terminate and eject the Stall Holder, and will take possession of the stall and open it for public bidding;

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- 3.10** The Stall Holder shall be free from paying the monthly rental during the month July, while only half is required to be paid on the months of June and December;
- 3.11** In the event the space is ABANDONED for a period of two (2) successive months by the STALL HOLDER, prior to the expiration of this contract without justifiable cause/notice, the LNU-IGO shall have the right to enter the leased premise and to re-let the same and collect the rentals corresponding to the unexpired period of the lease;
- 3.12** The Stall Holder may withdraw from the contract anytime provided proper FIFTEEN (15)-DAY notice shall be given to the LNU-IGO and only upon payment of the rental for the unexpired portion of the lease contract;
- 3.13** The LNU-IGO may unilaterally terminate the contract and inform the Stall Holders at least thirty (30) days prior in the event of necessary infrastructure development in the area. The two months deposit shall be refunded in full;
- 3.14** The Stall Holder shall not install, affix or construct permanent fixtures in to their respective spaces. In cases where improvement or modification is necessary to maintain the brand or insignia of the product, they may secure the consent of the LNU-IGO Management. PROVIDED, installation and construction will be shouldered by the Stall Holder without affecting the monthly rental. PROVIDED ALSO, upon termination/end of the contract, the Stall Holder shall restore the leased premise to its original state;
- 3.15** That the STALL HOLDER shall maintain cleanliness of the leased premise and its vicinity and secure the necessary Permits and Licenses, and Food Handlers Certificate from the City Health Office and/or from the other appropriate agencies. Failure to secure the necessary permits and licenses within the period of one (1) month from the commencement of the contract will result to a four-week temporary closure. If and when, the Stall Holder failed to comply thereafter, it will be the basis for the termination of the lease contract. Permits and licenses shall be displayed in a conspicuous part of the leased premise for public information and shall be available for inspection by health and other regulatory personnel (P.D. 856, Chapter IV, Sec 3.7);
- 3.15.a** That the STALL HOLDER shall be responsible for sanitation and waste disposal, shall undertake necessary remedial measures of potable water supply and distribution system located in the campus, and shall institute appropriate preventive measures to combat the development and spread of communicable diseases on campus;
- 3.15.b** That the STALL HOLDER and Food Handlers shall observe proper sanitary preparation in serving of foods and beverages, and there shall be proper refrigeration of foods and beverages;
- 3.15.c** That the Food Handlers must maintain a high degree of personal cleanliness and must conform to good hygienic practices during all work periods. They must have clean outer garments and wear hair nets;

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- 3.15.d That the Stall Holder must provide a list of the names of food handlers and/or workers and shall pay an equivalent amount for each stall holder and employee to have their IDs issued;
- 3.15.e That only the Stall Holder and two employees are permitted on the leased property and each should have a health card;
- 3.16** The **LNU-IGO** has the obligation to make necessary repairs, like repairs of the sink, functional water system, and repairs to the damaged wall due to termite infestation and rat hole. In the event the **LNU-IGO** fails to make the necessary repairs within a reasonable time, the **STALL HOLDER** may withhold payment of rental. However, the **STALL HOLDER** may opt to undertake such repairs and apply the rentals due, to cover the cost thereof. **PROVIDED**, that an approved consent of the LNU-IGO Management has been secured. The cost of repairs should be supported with official receipts;
- 3.17** The leased premises shall be for the personal and exclusive use of the Stall Holder, and shall in no way be sub-leased or allowed to any other person, including the Stall Holder's relatives and friends;
- 3.18** That the STALL HOLDER shall make a deposit equivalent to two (2) months rental to the University Cashier within five (5) calendar days after the execution of the contract. The deposit will be used to defray the cost of whatever repair is needed on the stall at the end of the contract. If the repair costs for the damages exceed the two (2) months deposit, the Stall Holder should pay the excess amount. Refusal to pay will disqualify them for future bidding activities;
- 3.19** The Stall Holder agrees and binds himself and his/her worker(s) to exercise proper courtesy in dealing with the customer or the public;
- 3.20** In case of food poisoning or sickness or injuries caused by or arising from food intake or consumption of the products/availment of services offered by the STALL HOLDER at the leased premises, the findings of the LNU-IGO or any other appropriate agency, shall be binding to the STALL HOLDER and, on which the basis, the LNU-IGO shall hold the STALL HOLDER liable thereof. The STALL HOLDER shall be solely responsible for, and hold the LNU-IGO free and blameless from any and all administrative, civil and/or criminal liability that may arise therefrom or any other damage in connection to the operation and maintenance of the leased premises;
- 3.21** The Stall Holder shall abide by the existing rules/policies/regulations including exclusively agreements of the LNU-IGO or that the latter may issue during the effectivity of the contract; and
- 3.22** The Stall Holder shall faithfully comply with the terms and conditions of the contract. Violation of any provision of this contract will be ground for termination.
- 3.23** Any record, which may contain personal information, shall be handled in accordance with R.A. 10173 or the Data Privacy Act of 2012.

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3.24 Any request for information shall be governed by E.O. No. 2, series of 2016 or the Freedom of Information Policy

4.0 PROCEDURES

4.1 Public Bidding of Vacant Stall

Responsibility	Activity
Income Generating Office	1. Posts Public Bidding Notice to different conspicuous places inside the University for a period of seven (7) Calendar days to provide the prospective bidders all the necessary information and details
Bidder	2. Fills up the Bidders Information Sheet which signifies his/her interest to bid. 3. Submits the Bidders Information Sheet to the Income Generating Office.
Income Generating Office	4. Gives Canvas Bid Form.
Bidder	5. Fills up the Canvas Bid Form and tender his/her Bid
Board of Management/ IGO Director	6. Opens the Bid at the scheduled opening date and time.
Income Generating Office	7. Posts winner/s of the bidding in three (3) conspicuous places in the University premises.

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4.2 Payment of Monthly Rental & Electricity

Responsibility	Activity
Income Generating Office	1. Prepares & issues billing statement for each stall holder.
Stall Holder	2. Pays the monthly billing at the Cash Management Office.
Cashier Staff	3. Receives cash as payment for monthly dues
	4. Issues Official Receipt
Stall Holder	5. Present Official Receipt to the IGO Staff
IGO Staff	6. Records the payment to the ledger.
	7. Prepares and issues Monthly Report on Rentals.

4.3 Handling of Complaints

Responsibility	Activity
Complainant	1. Submits complaint letter to the Income Generating Office containing the details
IGO Director	2. Receives the complaint letter and conducts initial investigation
	3. If complaint is valid, forwards the Complaint letter and initial investigation report to the Board of Management
Board of Management	4. Conducts hearing with the complainant and other concerned parties.
	5. Issues BOM Resolution stating the result of investigation and corresponding penalties/sanctions, if any.

5.0 LIST OF FORMS

- 5.1 Requests for Quotation/Bid Offer
- 5.2 Bidders Information Sheet
- 5.3 Notice of Award to Winning Bidder